

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUIS ALONSO VELASQUEZ,

Petitioner

VS.

HEIDY JASMIN ALVARDO ESPINO,

Respondent

) Case Number: FDI-24-800619

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Luis Alonso Velasquez (Father) and Heidy Jasmin Alvarado Espino (Mother) have two minor children, Loany (DOB: 9/3/2013, age 12) and Jayden (DOB: 5/31/2019, age 7).
- 2) On 11/27/2024, Father filed a Petition for Dissolution, stating the parties married on 5/22/2018 and separated on 11/9/2024 for a marriage of 6 years and 5 months.
- 3) On for hearing is Father's 2/3/2026 Request for Order seeking sole physical and sole legal custody of both children. Father states that Mother has not provided care or financial support for the children since the parties separated. Father identifies one incident when Loany texted him saying she was scared because Mother left her and Jayden alone in the children's room. Father states he has made all decisions for both children regarding their education and medical care post-separation; according to Father, he has consistently told Mother about his decisions, but Mother

never takes part in decision-making. Father additionally requests that the Court grant Mother a reasonable right of parenting time, since Mother has not expressed interest in routine visitation.

- 4) On 2/5/2026, Father filed a Petition to establish parentage over the minor children in related case FPT-26-378838.
- 5) On 4/15/2026, Mother filed a Response to Father's 2/3/2026 Request for Order denying Father's statements. She requests that (1) the Court award her sole legal and sole physical custody of both children; (2) that Father have visitation each week from Monday after school to Tuesday after school; and (3) that the Court have Tier II access to the child's school psychologist. Mother states Father prevented her from seeing the children by threatening to report her to immigration authorities, forced her out of the parties' residence, and threatened to kill her. Mother states Father showed the parties' daughter a firearm and told her that it was "meant for [Mother]." Mother states, especially during video calls, she notices the children are acting abnormal and cannot speak freely due to Father's continued surveillance and manipulation over the relationship between the children and Mother. Mother states she currently has secured stable housing and has a place for both children to stay.
- 6) On 5/1/2026, the Court entered a Judgment of Dissolution terminating the parties' marital status. The Judgment includes, in relevant part, a Marriage Settlement Agreement showing that the parties are the biological parents of the minor children.
- 7) On 6/1/2026, the parties attended mediation and were unable to reach an agreement.
- 8) On 6/11/2026, Father filed a Reply Declaration stating he does not own a firearm and has never shown any type of gun to his children. Father denies that he forced Mother out of the house or that he prevents her from seeing the children. Father states he is willing to co-parent with Mother once there is a consistent and limited visitation schedule. Father suggests that Mother have parenting time every other Saturday from 10am to 8pm and during pick-ups or drop-offs at school for the children. Since Mother is living with her boyfriend, Father states overnight visitations are not ideal at this time.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.

2) The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404.